

PANEL 01/12 - CORE QUESTION

Can the elected urban institution control the services for which residents hold it answerable?

Municipality = Article 243Q institution of self-government; authority remains State-law mediated.

Answer line: constitutional status is not the same as operational autonomy.

Follow the panel sequence; each page is synchronized with the quick-glance and graphical master.

PANEL 02/12 - ORIGIN AND CONSTITUTIONAL TURN

1688 Madras -> 1726 Bombay/Calcutta -> Mayo 1870 -> Ripon 1882 -> Hobhouse 1907-09.

1919 transferred subject -> 1935 provincial subject -> finance/staff/urbanisation committees.

65th Bill 1989 failed; revised 1990 Bill lapsed; 74th Amendment 1992 effective 1 June 1993.

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PANEL 03/12 - PART IXA SPINE

243P definitions; 243Q types; 243R composition; 243S wards; 243T reservation.

243U duration; 243V disqualification; 243W functions; 243X finance; 243Y SFC; 243Z audit.

243ZA elections; ZB UTs; ZC exclusions; ZD DPC; ZE MPC; ZF transition; ZG election bar.

Follow the panel sequence; each page is synchronized with the quick-glance and graphical master.

PANEL 04/12 - TYPES, COMPOSITION AND PARTICIPATION

Nagar Panchayat transitional -> Municipal Council smaller -> Corporation larger.

Industrial township is a notified exception, not a fourth ordinary type.

Territorial seats direct from wards; experts non-voting; chairperson method by State law.

Wards Committee mandatory at municipal population ≥ 3 lakh; area sabha needs legal grounding.

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PANEL 05/12 - RESERVATION, TENURE AND ELECTIONS

SC/ST seats by municipal population; women $\geq$ one-third inclusive; State may enhance women.

Backward-class reservation is enabling; Krishna Murthy + Gawali triple-test safeguards.

Five years from first meeting; hearing before dissolution; election before expiry/within six months.

SEC under 243ZA; Kishansing Tomar timing; Fouziya independence; 243ZG election-petition route.

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PANEL 06/12 - DEVOLUTION AND THE 18 MATTERS

243W and Twelfth Schedule are enabling, not self-executing.

Planning/land; roads/water/fire; health/sanitation/SWM; environment; inclusion; amenities; civic systems.

Test devolution by activity, decision right, staff, asset, budget, standard and grievance authority.

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PANEL 07/12 - FINANCE, AUDIT AND EQUALISATION

243X: State-authorized own taxes/fees + assignments + grants + funds.

Property tax needs complete base, transparent valuation, collection and appeal; user charges need equity.

243Y SFC + 280(3)(c) UFC supplementation; grants cannot replace State devolution.

243Z State-law accounts/audit; CAG technical support is not automatic sole audit.

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PANEL 08/12 - DPC AND MPC

DPC 243ZD: at least 4/5 elected; rural:urban population ratio; consolidates district plans.

MPC 243ZE: at least 2/3 elected; municipal:Panchayat population ratio; metropolitan draft plan.

Both consider shared resources/infrastructure/environment and forward plans to State Government.

Planning committee is not automatically an executive regional government.

Follow the panel sequence; each page is synchronized with the quick-glance and graphical master.

PANEL 09/12 - URBAN EXECUTIVE AND FRAGMENTATION

Mayor/council policy visibility versus commissioner/staff implementation control varies by State.

Parastatals may control land, water, transport or housing; SPVs may hold mission contracts.

Reform: clear statutory roles, council-approved outcomes, service agreements, shared data and O&M rules.

Follow the panel sequence; each page is synchronized with the quick-glance and graphical master.

PANEL 10/12 - OUTSIDE PART IXA AND URBAN TRANSITION

Cantonment Board: Cantonments Act 2006, central/Defence statutory local authority.

Major Port Authority: central Major Port Authorities Act 2021; not a municipality.

Development authorities and special agencies derive only from their statute/notification/company documents.

Census town != statutory municipality; transition needs criteria, consultation and protected representation.

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PANEL 11/12 - PROGRAMMES, SERVICES AND REFORM

Smart Cities 2015 SPV, AMRUT 2.0 2021 and SBM-U 2.0 2021 are dated programmes, not constitutional bodies.

Integrate land use, mobility, water, sanitation, waste, public health, climate and informal settlements.

Reform chain: activity maps -> cadres -> OSR/SFC -> DPC/MPC -> audit -> service outcomes.

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PANEL 12/12 - TRAPS, CASES AND ANSWER SPINE

Traps: 1 June 1993; Twelfth = 18; Ward threshold 3 lakh; metro threshold 10 lakh; DPC 4/5; MPC 2/3.

Cases: Kishansing Tomar; Fouziya; Krishna Murthy; Gawali; Rahul Ramesh Wagh orders; Suresh Mahajan.

Answer spine: define -> constitutional floor -> State-law gap -> named evidence -> reform -> qualification.

Verdict: subsidiarity needs accountable coordination where urban scale creates externalities.

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